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LINE 7

25-CIV-09945

JOSEPH SIGUIG VS. WEHOPE

JOSEPH SIGUIG
WEHOPE

JASON M ERLICH

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (GENERAL AND EMPLOYMENT); REQUEST FOR SANCTIONS

TENTATIVE RULING:

Plaintiff Joseph Siquig's Motion to Compel Further Responses to Form Interrogatories (General and Employment) is ruled upon as follows:

On December 19 2025, Plaintiff filed his complaint. Thereafter on March 21, 2026, Plaintiff propounded Form Interrogatories (General), Set One, and Form Interrogatories (Employment), Set One. (Lacques Decl., ¶2, Exhs. 1, 2.)

Defendant WeHope, Inc. served its initial responses to both sets of Form Interrogatories on May 2, 2026. (*Id.*, at ¶3, Exhs. 3, 4.) The parties met and conferred by email regarding the discovery responses after Plaintiff determined that responses to General Form Interrogatories Nos. 4.1, 12.2, 12.3, 13.1, and 13.2 and Employment Form Interrogatories Nos. 200.4, 209.2, 211.1, and 214.1 were insufficient, and Defendant through counsel agreed to provide amended responses to only Employment Form Interrogatories Nos. 211.1 and 214.1 by May 19, 2026 and extend the deadline to file a motion to compel from the statutory deadline to July 8, 2026.. (*Id.*, at ¶¶3-8.) Defendant served supplemental responses on May 19, 2026. (*Id.*, at ¶10, Exh. 8.)

As an initial matter, the Court notes that defendant WeHope, Inc. has not yet filed a responsive pleading in the action. A plaintiff may propound interrogatories to a party without leave of court, however, at any time that is ten days after the service of the summons on, or appearance by, that party, whichever occurs first." (Code Civ. Proc., § 2030.020, subd. (b).) Plaintiff was therefore entitled to propound interrogatories, and the present Motion is authorized. Plaintiff filed a Proof of Service by substitute service of the amended Summons and Complaint on March 6, 2026, and Defendant has not moved to quash that service. Additionally, Defendant served initial and amended discovery responses to Plaintiff's propounded discovery which did not include objections to the court's jurisdiction and did include substantive responses. (Lacques Decl., ¶¶3, 10-11.) This participation in the merits of the action recognizes the court's authority and independently amounts to a general appearance. (See, e.g. *Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 341, citing *Creed v. Schultz* (1983) 148 Cal.App.3d 733, 740.) The Court therefore has personal jurisdiction over Defendant WeHope, Inc.

Plaintiff's Reply brief references an Opposition, but that Opposition is not in the court file. Instead, on August 18, 2026, the court clerk rejected the filing because there had not been a first

appearance fee paid. However, defendant provided a courtesy copy to Department 4, which the court has reviewed.

Based upon the court's review of the pleadings, the court concludes that the parties have not had sufficient meet-and-confer regarding the discovery disputes. Defendant raises legitimate objections to the form interrogatories regarding the scope of the definitions. While generally, when a defendant thinks a term, like "incident" is vague and ambiguous or unintelligible, the proper procedure is to object and respond as best as the responding party can. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 ["Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response."].) However, in this case, it appears due to the number of potentially adverse actions, the scope of the interrogatories should have been worked out through meaningful meet-and-confer.

The court reminds the parties that, "The statute requires that there be a serious effort at negotiation and informal resolution. . . . Argument is not the same as informal negotiation; that attempting informal resolution means more than the mere attempt by the discovery proponent to persuade the objector of the error of his [or her] ways; and that a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294 (cleaned up); *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424.)

The court finds that the meet-and-confer in this case was insufficient. Simply sending meet-and-confer letters is not meaningful. Especially early in the case, as is the case here, counsel need to talk via Zoom or the telephone. Otherwise, the parties' default is simply to file motions to compel and request sanctions—here Plaintiff is seeking \$13,860.00 in sanctions for issues that should have been resolved during meaningful meet-and-confer.

Accordingly, the court defers ruling on the motion and orders the parties to have meet-and-confer in person or by Zoom by September 24, 2026 to see if they can resolve their differences. They shall email to Department 4 in a joint letter the result of their meet-and-confer, including any unresolved issues by October 1, 2026. If there are any unresolved issues then the parties shall personally appear for an informal discovery conference (IDC) with Judge Fineman on October 6, 2026 at 10:30 a.m. at the Hall of Justice, 400 County Center, Courtroom 4C, Redwood City, CA 94063. The parties shall meet-and-confer in person at the courthouse beginning at 9:00 a.m. on October 6, 2026 prior to the conference with Judge Fineman. If there are issues remaining after the IDC, the court will set a hearing date, allow supplemental briefing, and then the court will rule on this motion to compel.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 8

25-CLJ-07808

U.S. BANK NATIONAL ASSOCIATION VS GEOARTBONAL CORRAL

U.S. BANK NATIONAL ASSOCIATION
GEOARTBONAL CORRAL

DOUGLAS S WALLACE
JUSTIN REITER

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

TENTATIVE RULING:

Plaintiff U.S. Bank N.A.'s unopposed Motion for Summary Judgment or, in the Alternative, Summary Adjudication is DENIED WITHOUT PREJUDICE.

As a preliminary matter, the proofs of service of notice of the motion and its supporting papers is defective. Both proofs omit the name of the law firm that is part of Corral's counsel's address of record. (Feb. 24, 2026 Amended Notice of Motion, p. 2; Feb. 10, 2026 Notice of Motion, p. 2.)

Service by mail must be "addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by mail[.]" (Code Civ. Proc., § 1013, subd. (a).) "Successful service by mail requires strict compliance with all statutory requirements, including those set forth in section 1013; the failure to comply deprives a court of jurisdiction to act." (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 509.)

Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as was the case in *Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362. There, because name of the attorney's law firm was listed in addition to the attorney's name on the party's prior court filings, "the correctly addressed envelope should have included the firm name." (*Triumph Precision Products, Inc.*, *supra*, at p. 365.) The service by mail was thus ineffective. (*Ibid.*) Such is the case here.

In addition and just as important, both notices contain incorrect locations for the hearing location. (See Amended Notice of Motion, p. 1; Notice of Motion, p. 1.) The first notice states that the motion will be heard by Department 2 in the Norther Courthouse in South San Francisco and the amended notice has the correct department, Department 4, but states that the hearing will be in the Central Courthouse in San Mateo. Department 4 is located at the Hall of Justice, 400 County Center, Courtroom 4C in Redwood City, California. (See (See Cal. Rules of Court, rule 3.1110 [the notice "must specify" the location of the hearing].)

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, because the proofs of service are defective and there is otherwise no
